

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Plaintiff VIDA LARA's Motion to Compel Further Responses to Special Interrogatory No. 1 Propounded on Defendants WINNRESIDENTIAL L.P. and LLAM REALTY MANAGEMENT INC.

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

A class action plaintiff is generally entitled through discovery to obtain contact information for putative class members, after *Belaire-West* notice, as to those putative class members who then fail to timely opt out of the disclosure of their contact information. Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 554; Williams v. Superior Court (2017) 3 Cal.5th 531.

Access to contact information will often be warranted even before the adequacy of the named plaintiff and counsel's representation has been vetted, a class certified, absent putative class members made parties, and heightened duties imposed. Id. at 547.

It does not matter if the pleadings are not yet set, and the scope of the action is still uncertain.

That the eventual proper scope of a putative representative action is as yet uncertain is not obstacle to discovery a party may proceed with interrogatories and other discovery methods precisely in order to ascertain that scope. Id. at 551.

While undue burden can weigh against production of such contact information, the burden of proof falls on the defendant to produce evidence sufficient to quantify the burden that production would impose.

A trial court "shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).) However, as with other objections in response to interrogatories, the party opposing discovery has an obligation to supply the basis for this determination. An "objection based upon burden must be sustained by evidence showing the quantum of work required." (West Pico Furniture Co. v. Superior Court, *supra*, 56 Cal.2d at p. 417.) As the objecting party, Marshalls had the burden of supplying supporting evidence, but in response to Williams's motion to compel it offered none. Given this, the trial court had nothing in the record upon which to base a comparative judgment that any responsive burden would be undue or excessive, relative to the likelihood of admissible evidence being discovered. Id. at 549-550.

Another case suggested that “undue burden” be measured by weighing the cost, time, expense and disruption of normal business if responses were required against the probative value that might be realized from that discovery:

Because of the potential for promiscuous discovery imposing great burdens, even though ultimately the probative value of the discovered material may be questionable, trial judges must carefully weigh the cost, time, expense and disruption of normal business resulting from an order compelling the discovery against the probative value of the material which might be disclosed if the discovery is ordered. Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 223.

Defendants have in opposition produced a declaration by an executive vice president of Defendant WINNRESIDENTIAL CALIFORNIA L.P. While this declaration asserted the inability of this defendant to access records for about 65 of the over 250 different properties in California it had managed, and the need to review an estimated 13,000 files in locations throughout the state for all of the thousands in damages charges (for the other 185+ properties to which it still has access to those records), it failed to quantify what time and expense compliance would cost, nor to explain what if any steps were taken to make reasonable and good faith effort to access records and/or information not in its immediate possession (nor was any evidence at all provided for Defendant LLAM REALTY MANAGEMENT, INC.).

Under these circumstances, and with the subject discovery having been initially propounded back in August 2025, the court concludes that further responses/compliance will be required as soon as reasonably possible. Counsel are to appear for hearing to discuss the logistics and timetable for Defendants providing *Belaire-West* notice, and ultimate production to Plaintiff of the contact information, for the former renters whose contact information was sought in the subject special interrogatory and who do not timely opt out of the release of that information, to the extent such information is reasonably available to Defendants, after a reasonable and good faith effort to obtain the information, per the obligations imposed by C.C.P. §2030.220.

KRISTALYN GORDON; ET AL. vs. LISA KUSA DI GIACOMO; ET AL.
Case No. CU25-06969

Defendants STITCH IN TIME ANIMAL RESCUE (“STAR”) and LENNOX WELSH’s
Motion for Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. The Parties should be prepared to address: